

Nepal Treaty Act, 1990

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Nepal Treaty Act, 2047

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Amending Acts

1. This Act came into force from Jestha 15, 2065. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.07
2. Some Nepal Acts Amendment Act, 2072 2072.11.13
3. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 16 of the year 2047

An Act Made to Provide for the Procedure Relating to Treaties

Preamble: Whereas it is expedient to make legal provisions regarding the procedure for the signature, ratification, accession, acceptance or endorsement of a treaty or agreement to which Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or the Government of Nepal is a party, and regarding the implementation of such a treaty or agreement;

Now, therefore, His Majesty King Birendra Bir Bikram Shah Dev has, in accordance with Article 129 of the Constitution, with the advice and consent of the Council of Ministers, enacted this Act. 1. Short Title, Extent and Commencement: (1) This Act may be cited as the "Nepal Treaty Act, 2047".

(2) This Act shall be deemed to have commenced from Kartik 23, 2047.

(3) This Act Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. shall apply in respect of a treaty to which Nepal or the Government of Nepal is a party after Kartik 23, 2047. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Treaty" means an agreement concluded in writing between two or more States or between any State and an inter-governmental organization, and the term shall also include any instrument of any such nature, whatever its designation.

(b) "Full Powers" means a document issued by the Government of Nepal authorizing a person to negotiate a treaty, or to adopt the final draft or authentic text of a treaty, or to sign a treaty, and the term shall also include the authority granted to make a reservation while negotiating or signing such a treaty, or to do any other act in relation to such a treaty.

(c) "Reservation" means a declaration made by a party, when signing a multilateral treaty or when ratifying, acceding to, accepting or endorsing such a treaty, that any provision of that treaty shall not apply to that party, and the term shall also include a declaration made by a party clarifying the interpretation of such a

provision in its respect.

(d) "Denunciation of Treaty" means a declaration made to terminate a treaty by complying with the procedure specified in the treaty.

(e) Amended by the Some Nepal Acts Amendment Act, 2072. "Constitution" means the Constitution of Nepal. 3.

Authority to Conclude a Treaty: (1) No person other than the President, the Prime Minister or the Minister for Foreign Affairs shall, without Full Powers, negotiate, adopt the final draft or authentic text of, sign, or make a reservation in respect of, or do any other act in relation to, any treaty on behalf of Nepal or the Government of Nepal. (2) Notwithstanding anything contained in Sub-section (1), the Nepali Ambassador or Head of Mission representing Nepal in any foreign State or inter-governmental organization may negotiate or adopt the final draft or authentic text of a treaty on any subject with such State or inter-governmental organization, and the leader of a delegation participating in any international conference may do so in respect of a treaty concluded at that conference. 4. Procedure for Ratification and Accession to a Treaty: (1) Amended by the Some Nepal Acts Amendment Act, 2072. In respect of treaties on subjects other than those mentioned in Sub-section (2) of Article 279 of the Constitution, if ratification, accession, acceptance or endorsement of a treaty is required by its provisions, or if it is desired to accede to any treaty, the Government of Nepal shall present a proposal to that effect to the Amended by the Some Nepal Acts Amendment Act, 2082. House of Representatives. (2) The proposal relating to the ratification, acceptance, endorsement or accession to a treaty presented under Sub-section (1) shall be passed by a majority of the members present in the Amended by the Some Nepal Acts Amendment Act, 2082. House of Representatives. (3) After the proposal is passed by the Amended by the Some Nepal Acts Amendment Act, 2082. House of Representatives under Sub-section (2), the Government of Nepal shall give notice of ratification, acceptance, endorsement or accession in accordance with the provisions of that treaty to the concerned party or authority. (4) In the case of a treaty establishing any inter-governmental organization or granting membership in any such organization, or a treaty contrary to the prevailing law, even if that treaty does not provide for ratification, accession, acceptance or endorsement, Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or the Government of Nepal shall not become a party to such a treaty unless the proposal is passed by the Amended by the Some Nepal Acts Amendment Act, 2082. House of Representatives. 5. Ratification, Accession, Acceptance or Endorsement of Certain Specific Treaties: (1) Amended by the Some Nepal Acts Amendment Act, 2072.

When ratification, acceptance or endorsement of a treaty on subjects mentioned in Sub-section (2) of Article 279 of the Constitution is required, or when permission to accede to such a treaty is required, the Government of Nepal shall present a proposal to that effect to the Amended by the Some Nepal Acts Amendment Act, 2082. Federal Parliament. (2) In respect of a treaty presented under Sub-section (1), after the proposal is passed by the Amended by the Some Nepal Acts Amendment Act, 2082. Federal Parliament in accordance with Sub-section (2) of Article 279 of the Constitution Amended by the Some Nepal Acts Amendment Act, 2072., the Government of Nepal shall give notice of ratification, accession, acceptance or endorsement of such a treaty in accordance with the provisions of that treaty to the concerned party or authority. 6. Treaties Signed and Put into Effect by the Government of Nepal: Treaties on any subject other than those mentioned in Section 4 or Sub-section (2) of Article 279 of the Constitution Amended by the Some Nepal Acts Amendment Act, 2072. shall be deemed to have been accepted and as having made Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or the Government of Nepal a party thereto, upon signature by a decision of the Government of Nepal. 7. Denunciation or

Suspension of a Treaty: The Government of Nepal shall have the power to denounce, suspend partially or wholly, or revive the suspension of a treaty to which Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or the Government of Nepal is a party, unless otherwise provided in that treaty, and if such treaty relates to subjects mentioned in Sub-section (2) of Article 279 of the Constitution Amended by the Some Nepal Acts Amendment Act, 2082., information thereof shall be given to the Federal Parliament, and if it is under Section 4, information thereof shall be given to the House of Representatives. 8. **Treaty Not Retrospective:** Unless otherwise provided in a treaty, a treaty shall not be applied with retrospective effect. 9. **Treaty Provisions to Apply as Law:** (1) If any provision of a treaty which has been ratified, acceded to, accepted or endorsed by the Amended by the Some Nepal Acts Amendment Act, 2082.

House of Representatives or the Federal Parliament and to which Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or the Government of Nepal is a party, conflicts with the prevailing law, the prevailing law shall, to the extent of the conflict, be invalid for the purpose of that treaty, and the provision of the treaty shall apply as Nepali law in that respect. (2) If a treaty to which Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or the Government of Nepal is a party has not been ratified, accepted or endorsed, or accession has not been approved, by the Amended by the Some Nepal Acts Amendment Act, 2082. House of Representatives or the Federal Parliament, but such treaty imposes any additional obligation or burden on Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or the Government of Nepal and requires legal provision for its implementation, the Government of Nepal shall initiate proceedings to make a law as soon as possible for the implementation of that treaty. 10. **To be Presented before the Legislature-Parliament:** A list of treaties accepted by the Government of Nepal under Section 6 shall be presented to the Amended by the Some Nepal Acts Amendment Act, 2082. House of Representatives for information within one month of the sitting of the Amended by the Some Nepal Acts Amendment Act, 2082. House of Representatives. 11. **Registration of Treaties:** The Government of Nepal may cause such treaties to which Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or the Government of Nepal is a party as it deems appropriate to be registered with the Secretariat of the relevant international organization or the United Nations. 12. **Publication of Treaties:** Authentic copies of such treaties to which Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or the Government of Nepal is a party as the Government of Nepal deems appropriate shall be published in the Nepal Gazette. Provided that treaties which have been ratified, accepted or endorsed by the Amended by the Some Nepal Acts Amendment Act, 2082. House of Representatives or the Federal Parliament, and treaties to which Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or the Government of Nepal has acceded by a decision of the Amended by the Some Nepal Acts Amendment Act, 2082.